

Some Special Features of the Indian Constitution

- 1.** The Constitution of India is the lengthiest and the most comprehensive of all the written Constitutions of the world.
- 2.** Originally the Constitution consisted of 395 Articles divided into 22 parts and 8 Schedules.
- 3.** Now it consists of about 442 Articles divided into 22 parts and 12 Schedules.
- 4.** Unlike the federal Constitutions of the USA and Australia the Indian Constitution lays down provisions relating to the Governmental machinery not only in the Centre but also in the States.
- 5.** The Indian Constitution provides for matters of administrative detail. >- The Constitution contains detailed provisions relating to Centre-State relations including the emergency provisions.
- 6.** Special status has been given to Jammu & Kashmir and some other states such as Nagaland, Mizoram, Assam, Gujarat etc.
- 7.** Under the Constitution the people of India are the ultimate sovereign. The Constitution of India establishes a parliamentary form of Government both at the Centre and in the States.
- 8.** The Indian Constitution, though written, is sufficiently flexible.
- 9.** The Constitution declares certain Fundamental Rights of the individual.
- 10.** It is a unique feature of the Indian Constitution that it makes the citizens' duties a part of the basic law of the land.
- 11.** One of the most important and unique features of the Indian Constitution is the provisions of Directive Principles of State Policy to secure a truly welfare State.
- 12.** The Indian Constitution, distributes the legislative subjects on which the Parliament and State Legislature can enact laws under three lists viz. Union List, State List and Concurrent List.
- 13.** The Indian Constitution unlike other federal Constitutions provides for a single unified judiciary with the Supreme Court at the apex, the High Courts in the middle and the Subordinate Courts at the bottom.

- 14.** There are provisions in the Constitution to ensure independence of judiciary.
- 15.** The Constitution of India has adopted a balance between the American system* of Judicial Supremacy and the British principle of Parliamentary Supremacy.
- 16.** The most remarkable feature of the Indian Constitution is that being a federal Constitution it acquires a unitary character during the time of emergency.
- 17.** Under the Indian Constitution every adult above 18 years of age has been given the right to elect representatives for the legislature without prescribing any qualification based either on sex, property, education or the like.
- 18.** A distinctive feature of the Indian Constitution is that it provides for the establishment of a Secular State. Regardless of their religious beliefs, all Indian citizens enjoy equal rights.
- 19.** The State cannot discriminate against anyone on the ground of religion or caste, nor can it compel anybody to pay taxes for the support of any particular religion.
- 20.** The Indian Constitution has special reservation of seats for the Scheduled Castes and Tribes in public appointments and in educational institutions and in the Union and State Legislatures.
- 21.** An outstanding feature of the Constitution is Panchayati Raj. The idea for organising village Panchayats was provided in the Constitution under Article 40 of Part IV which received Constitutional legitimacy through the 73rd Amendment to the Indian Constitution.